

24TRCV02771 24TRCV02771

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-30

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Case Number: 24TRCV02771 Hearing Date: June 30, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

KENNETH

TORRES (PRO SE),

Plaintiff,

Case No.:

24TRCV02771

v.

[Tentative]

Granted

AMERICAN

AIRLINES GROUP INC

Defendants.

Hearing

Date: June 30, 2026

Moving

Parties: Defendant American
Airlines Group Inc.

Responding

Party: N/A

HEARING: Motion for Terminating Sanctions

The Court considered the moving papers.

RULING

The Court grants the Motion for Terminating
Sanctions.

BACKGROUND

On August 21, 2024, Plaintiff Kenneth Torres filed
the Complaint against Defendant American Airlines, alleging causes of action
for wrongful termination, retaliation, and age discrimination.

On April 29, 2026, Defendant filed the Motion for
Terminating Sanctions.

No Opposition has been filed.

LEGAL STANDARD

The court is authorized, after notice and
opportunity for hearing, to impose the following sanctions against anyone
engaging in conduct that is a misuse of the discovery process: monetary
sanctions, issue sanctions, evidence sanctions, terminating sanctions, and
contempt. (Code Civ.
Proc., §2023.030 subd. (a)-(e).) A terminating sanction may be imposed by
an order dismissing the action against whom the sanction is imposed. (Code Civ. Proc.,
§2023.030 subd. (d)(3).)

Code of Civil Procedure, section 2023.010, subdivision (g), provides that a misuse of the discovery process includes, but is not limited to, “[d]isobeying a court order to provide discovery.”

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc., 2009) 174 Cal.App.4th 967, 992; see J.W. v. Watchtower Bible and Tract Society of New York, Inc., 2018) 29 Cal.App.5th 1142, 1169.) If a lesser sanction fails to curb misuse, a greater sanction is warranted. (Doppes, supra, 174 Cal.App. 967, 992.) Discovery sanctions should be appropriate to the dereliction and should not exceed what is required to protect the interests of the party entitled to but denied discovery. (Ibid.) “But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Ibid., quoting Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280; Creed-21 v. City of Wildomar, 2017) 18 Cal.App.5th 690, 702 (quoting same).)

Because terminating sanctions are the most “drastic” penalty, they are typically a “last resort” to be “used sparingly”; however, they may still be appropriate “as a first measure” in “extreme cases” where a litigant violates a court order and “persists in the outright refusal to comply with [its] discovery obligations.” (Siry Investment, L.P. v. Farkhondehpour, 2020) 45 Cal.App.5th 1098, 1118, as modified on denial of reh’g (Mar. 23, 2020).

DISCUSSION

Defendant argues terminating sanctions are warranted because Plaintiff has engaged in a sustained and willful pattern of discovery abuse spanning over a year, has repeatedly defied multiple court orders, and has demonstrated that lesser sanctions will not produce compliance.

Plaintiff was served with five sets of discovery requests in March 2025 and failed to respond by the April 2025 deadline, ignored meet and confer efforts, failed to oppose motions to compel, and disobeyed the Court's July 2025 orders requiring

compliant responses and payment of \$1,455 in sanctions by August 15, 2025. Rather than comply, Plaintiff filed an improper notice of appeal that was dismissed for lack of jurisdiction in October 2025. When Defendant filed its first motion for terminating sanctions, the Court gave Plaintiff a final opportunity to comply, but the responses Plaintiff eventually served in January 2026 were incomprehensible, incomplete, and evasive, failing to state whether Plaintiff would produce documents and producing no documents at all, requiring yet another round of motions to compel responses Plaintiff had already been ordered to provide.

At the February 19, 2026, hearing, the Court awarded monetary sanctions of \$6,880 as a less severe alternative to terminating sanctions and expressly warned that terminating sanctions may follow if violations continued. Plaintiff has not paid any portion of the ordered sanctions and has not supplemented his discovery responses; instead, he improperly filed a motion for summary judgment with an inadequate notice period.

If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes*, supra, 174 Cal.App. 967, 992.) Discovery sanctions should be appropriate to the dereliction and should not exceed what is required to protect the interests of the party entitled to but denied discovery. (*Ibid.*) “But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Ibid.*)

Here, Plaintiff has failed to comply with the Court’s February 19, 2026, order, as he has failed to serve complete responses or pay his sanctions, despite express warnings that failure to comply would lead to terminating sanctions. Thus, the Court finds that lesser sanctions have failed to curb Plaintiff’s discovery misuse. Consequently, the Court finds that terminating sanctions are warranted.

Therefore, the Court grants the Motion for Terminating Sanctions.